IN THE SUPREME COURT
OF THE VIRGIN ISLANDS
FILED
October 03, 2024 03:08 PM
SCT-Prom-2024-0001
VERONICA HANDY, ESQUIRE
CLERK OF THE COURT

IN THE SUPREME COURT OF THE VIRGIN ISLANDS

IN RE: AMENDMENTS TO THE V.I. RULES OF APPELLATE PROCEDURE	**SCT-Prom-2024-0001**

NOTICE OF ENTRY OF JUDGMENT/ORDER

TO: **Justices of the Supreme Court**
Judges and Magistrate Judges of the Superior Court
Judges and Magistrate Judges of the District Court
Marjorie Whelan, Esq., President, V.I. Bar Association
Hinda Carbon, Executive Director, V.I. Bar Association, *for distribution to V.I. Bar Members*
Regina D. Peterson, Administrator of Courts
Veronica J. Handy, Esq. Clerk of the Supreme Court
Tamara Charles, Clerk of the Superior Court
Glenda L. Lake, Esq., Clerk of the District Court
Supreme Court Law Clerks
Supreme Court Secretaries
Order Book
Westlaw
Lexis/Michie

Please take notice that on **October 3, 2024** a(n) **ORDER** dated **October 3, 2024**, was entered by the Clerk in the above-entitled matter.

Dated: **October 03, 2024**

VERONICA J. HANDY, ESQ.
Clerk of the Court
By:

Deputy Clerk II

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OF THE VIRGIN ISLANDS
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VERONICA HANDY, ESQUIRE
CLERK OF THE COURT

IN THE SUPREME COURT OF THE VIRGIN ISLANDS

IN RE:	)	**PROMULGATION No. 2024-001**
AMENDMENTS TO THE VIRGIN ISLANDS RULES OF APPELLATE PROCEDURE.	)	

ORDER OF THE COURT

Pursuant to its inherent authority and the authority granted to it by section 21(c) of the Revised Organic Act of 1954, and title 4, sections 31(a) and 32(f) of the Virgin Islands Code, the Supreme Court of the Virgin Islands proposes the following amendment to the Virgin Islands Rules of Appellate Procedure. Accordingly, it is hereby

ORDERED that the following language **SHALL BE DESIGNATED** as Rule 40 of the Virgin Islands Rules of Appellate Procedure:

Rule 40. Petition for Hearing or Rehearing En Banc; En Banc Determination

(a) *When Hearing or Rehearing En Banc May Be Ordered.* A majority of the justices, who are in regular active service, and who are not disqualified may order that an appeal or other proceedings be heard or reheard en banc. A majority of the justices shall include any senior sitting justice or designated justice assigned to the case. An en banc hearing or rehearing is not favored and ordinarily will not be ordered unless:

(1) en banc consideration is necessary to secure or maintain uniformity of the court's decisions; or

(2) the proceeding involves a question of exceptional importance.

(b) *Petition.* A party may petition for a hearing or rehearing en banc.

(1) The petition must begin with a statement that either:

(A) the decision of the panel conflicts with controlling authority (with citation to the conflicting case or cases) and consideration by the full court is therefore necessary to secure and maintain uniformity of the court's decisions; or

(B) the proceeding involves one or more questions of exceptional importance, each of which must be concisely stated.

(2) Except by the court's permission, a petition for a hearing or rehearing en banc must not exceed 3,900 words.

(3) For the purposes of the word limit in Rule 40(b)(2), if a party files both a petition for panel rehearing and a petition for rehearing en banc, they are considered a single document even if filed separately.

(4) In consolidated cases, a petition filed by one party will not be deemed filed by any other party.

(c) *Time for Petition for Hearing or Rehearing En Banc.* A petition that an appeal or other matter be heard initially en banc must be filed by the date when the appellee or respondent's brief is due. A petition for rehearing en banc must be filed within the time prescribed by Rule 31 for filing a petition for panel rehearing.

(d) *Response.* Unless the court requests, no response to a petition for en banc consideration, and no reply to a response, may be filed.

(e) *Form.* The petition and any response or reply must comply in form with Rule 15.

(f) *Call for a Vote.* A vote will not be taken to determine whether the case will be heard or reheard en banc unless one justice in regular active service or a senior, retired, or designated justice who was a member of the panel that rendered the decision calls for a vote.

(g) *Effect of Vote.* If a majority of the justices in regular active service and who are not disqualified:

(1) vote to grant en banc hearing, the matter shall be transferred from a panel to the en banc court;

(2) vote to grant en banc rehearing, the judgment of the panel shall be vacated and the en banc Court shall determine whether to order new or supplemental briefing or to set the matter for oral argument before the en banc Court; or

(3) vote to deny en banc hearing or rehearing, or no vote for en banc hearing or rehearing is called, the majority of the Justices who are not disqualified shall be deemed to have voted to permit the panel to resolve the case.

(h) *Decision.* A decision of the Court sitting en banc must be concurred in by at least three Justices. If at least three Justices cannot agree on a result, the Court shall reinstate the panel's judgment or, if heard initially en banc, set the matter for hearing before a panel.

(i) *Suspension of Rule.* All portions of this Rule pertaining to hearing or rehearing en banc shall be ineffective:

(1) with respect to all matters before the Court during any period where the total number of justices who are in regular active service and Senior Justices is three or less; or

(2) with respect to a particular matter when recusal, disqualification, absence, illness, or other cause results in less than three justices who are in regular active service or Senior Justices being available to hear or rehear the matter en banc.

It is further

ORDERED that Rule 31 of the Virgin Islands Rules of Appellate Procedure **SHALL BE AMENDED** by striking all existing language in its entirety and replacing it with the following new language:

Rule 31. Panel Hearing and Rehearing

(a) *Panels*. Except in cases where the Court has determined that a matter should be heard en banc, all cases are assigned for consideration to a panel of three Justices.

(b) *Composition of Panels*. All panels will consist solely of active Justices of the Supreme Court unless disqualifications, vacancies, illness, prolonged absences, scheduling conflicts, or other relevant consideration requires appointment of one or more Senior or Designated Justices to hear a particular case. The Chief Justice, with the cooperation of the Associate Justices and the assistance of the Clerk of the Court, shall develop a rotating schedule for the automatic assignment of three-Justice panels to hear all cases at a given session of the Court; provided, however, that such schedule may be modified to ensure an even distribution of caseloads amongst the Justices. The composition of the panel hearing a given case shall not be announced prior to issuance of the calendar for a given Court session.

(c) *Panel Decisions Binding*. Decisions issued by a panel of the Court are precedents of the Court which are binding on all lower courts as well as subsequent panels of the Court. No panel may overrule or modify a prior decision of the Court, whether issued *en banc* or by another panel, without consideration by the Court *en banc*.

(d) Petitions for Panel Rehearing.

(1) *Time*. Unless the time is shortened or extended by order, a petition for rehearing by the panel may be filed within 14 days after entry of judgment.

(2) *Contents*. The petition must state with particularity each point of law or fact that the petitioner believes the panel has overlooked or misapprehended and must argue in support of the petition. Oral argument in support of the petition is not permitted.

(3) *Response*. Unless the panel requests, no response to a petition for rehearing by the panel, and no reply to a response, may be filed.

(4) *Consolidation*. In cases consolidated on appeal, a petition filed by one party will not be deemed filed by any other party.

(5) *Action by the Panel*. If a petition for rehearing by the panel is granted, the panel may do any of the following:

(A) make a final disposition of the case without reargument;

(B) restore the case to the calendar for reargument or resubmission; or

(C) issue any other appropriate order.

(6) *Form; Length*. The petition and the response must comply in form with Rule 15. Unless the panel permits otherwise, a petition for rehearing by the panel, or a response if requested by the court, must not exceed 3,900 words.

(7) *Consolidated Petition*. A party may file a petition that simultaneously seeks panel rehearing and rehearing en banc. For the purposes of the word limit in Rule 31(b), if a party files both a petition for panel rehearing and a petition for rehearing en banc, they are considered a single document even if filed separately.

It is further

ORDERED that, pursuant to Rule 37 of the Virgin Islands Rules of Appellate Procedure, the Advisory Committee on Rules, as well as the public and members of the local Bench and Bar, **MAY SUBMIT WRITTEN COMMENTS** on this proposed amendment to the Clerk of the Court within thirty (30) days of entry of this order. It is further

ORDERED that, unless modified as a result of comments submitted to the Court, the proposed amendment **SHALL TAKE EFFECT on December 1, 2024**. It is further

ORDERED that copies of this order be directed to the appropriate parties.

SO ORDERED this 3rd day of October, 2024.

IVE ARLINGTON SWAN
Associate Justice

MARIA M. CABRET
Associate Justice

HAROLD W.L. WILLOCKS
Associate Justice

RHYS S. HODGE
Chief Justice

ATTEST:

VERONICA J. HANDY, ESQ.
Clerk of the Court

By: _____
Deputy Clerk II

Dated: 10-3-2024

Copies to:
Justices of the Supreme Court
Judges & Magistrate Judges of the Superior Court
Judges & Magistrate Judges of the District Court
Marjorie Whalen, Esq., President, V.I. Bar Association
Hinda Carbon, Executive Director, V.I. Bar Association, *for distribution to V.I. Bar members*
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